



File No.: EXP202313014

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On August 29, 2023, a complaint was filed with the Spanish Agency for Data Protection (AEPD) regarding a possible infringement attributable to the CONSORCIO SERVICIO CONTRA INCENDIOS Y DE SALVAMENTO PROVINCIA DE CIUDAD REAL with NIF P1300035A (hereinafter, CSIS or the complained party).

The facts brought to the attention of this authority:

The complainant states that they are an employee of one of the fire stations of CSIS. They indicate that there is a mural at the entrance of their workplace that features photographs of all the workers at the center, including their own, at least since July 13, 2023. They assert that the mural is located in a passageway and is visible to anyone who accesses the center.

They claim that the photograph was taken by the center for the purpose of creating their professional ID after obtaining their consent, but that they have not been asked for permission for "its display and the creation of a public mural with my image" (sic).

They assert that after requesting the removal of their photograph from the center, without success, they sent a letter on August 4, 2023, to the management of CSIS and to the head of the operational area reiterating their request, without having received a response.

Furthermore, they state that on August 10, they verbally expressed (...) their discomfort with the situation and indicated that "they will take the legal measures they deem appropriate and hence this complaint" (sic).

Along with their complaint, they provide:

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Photographs dated August 3, 10, 14, and 16, 2023, showing a mural displayed on a wall, under the headings "Consortio Servicio contra incendios y salvamento provincia Ciudad Real" and "Parque de Bomberos (...)" featuring photographs of different workers identified by their first and last names. They appear in uniform and are differentiated among the various work groups (A, B, C, D, F).

Among the photographs is that of the complainant.

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A copy of the complainant's ID.

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An audio recording of 4 minutes in duration in which a conversation is heard between someone identifying themselves as ***PUESTO.1 and the complainant.

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A letter addressed by the complainant to CSIS signed on August 2, 2023, the content of which is reproduced below. It bears a receipt stamp from CSIS dated August 4, 2023, with entry registration number XXXX:

"(...).

(...)

Subject: Photographs of firefighters displayed in the parks of the province.

I state: That a very large photograph, mural-sized, featuring the faces of the firefighters belonging to the Fire Station (...), has been displayed in the premises of the aforementioned Fire Station, and I imagine that the same has been done in all (...).

As (...) SCIS.

That permission was requested from the workers to take a photograph, whose use or purpose was to accompany the professional ID, a photograph taken by a colleague (...). I believe that just as permission was requested to take the photograph for the professional ID, permission should have been requested from the workers to make another use of it, such as the display of murals with the faces of all the workers in the Provincial Parks.

2.

As a worker.

That I have not given my permission nor has the SCIS management or my direct supervisors such as: (...) asked me about giving another use to my photograph and not using it as an ID.

Let it be clear, I do not wish for my face to be displayed publicly on a mural.

I consider it completely inappropriate for people (...) to give or make use of my image without my permission, therefore,

I REQUEST;

That my image be removed from the mural of (...), otherwise, I will have to take the legal measures I deem appropriate and report this fact to the Data Protection Agency for misuse of my image.

Likewise, I believe that all colleagues, workers of SCIS should be asked if they wish for their photograph to be displayed publicly." (sic)

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3/16

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on September 26, 2023, the aforementioned complaint was forwarded to CSIS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The act of forwarding and request for information was notified to the complained party on September 28, 2023.

After the stipulated period, there is no record of a response from CSIS.

THIRD: On November 29, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On June 4, 2024, a letter was received at the AEPD from the complaining party requesting the sending of the resolutions issued as a result of their complaint.

FIFTH: On March 31, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party for the alleged violations of Articles 6 and 17 of the GDPR, classified in Articles 83(a) and 83(b) of the GDPR, respectively.

SIXTH: The aforementioned initiation agreement was notified on April 1, 2025, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations, it has been confirmed that no allegations have been received from the complained party.

Article 64.2(f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the violation of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2(f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in this procedure,

PROVEN FACTS

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4/16

FIRST: CSIS is the employer of the complaining party, from whom a photograph was taken for the preparation of their professional ID.

SECOND: The aforementioned photograph of the complaining party was used by CSIS for the creation of a mural displayed, at least from July 13, 2023, to August 16, 2023, at the workplace of

***CENTRO.1. The mural features images of all employees, as well as their names and surnames.

THIRD: The complaining party sent a letter to CSIS requesting the removal of their image from the mural of ***CENTRO.1. The request was received by CSIS on August 4, 2023, without the complaining party receiving any response.

FOURTH: There is no record that the image of the complaining party has been removed from the mural or any evidence of the legal basis that would allow the display of the aforementioned photograph.

FIFTH: The data controller is the CONSORCIO SERVICIO CONTRA INCENDIOS Y DE SALVAMENTO PROVINCIA DE CIUDAD REAL with NIF P1300035A

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

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5/16

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the file of proceedings will be closed, in accordance with the provisions established in Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Article 4.1) of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

In light of the above, the physical image of a person is personal data and its protection is therefore subject to this Regulation.

Article 4.2) of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

Article 4.7) of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States." Likewise, Article 4.8) of the GDPR defines the "processor" as the natural or legal person, public authority, agency or other body that processes personal data on behalf of the controller.

In the present case, in accordance with the provisions established in Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since CSIS carries out, among other processes, the collection, storage, and display of personal data of natural persons, such as the photograph or image of the claimant.

CSIS carries out this activity in its capacity as the data controller as it is the entity that determines the purposes and means of the activity, in accordance with Article 4.7 of the GDPR.

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6/16

IV

Unfulfilled Obligation. Lawfulness of Processing

Article 6 of the GDPR, which regulates the lawfulness of processing, establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation regarding processing in compliance with paragraph 1, points c) and e), by specifying more precisely the specific requirements for processing and other measures that ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

3. The legal basis for processing referred to in paragraph 1, points c) and e), shall be established by:

- a) Union law, or
- b) the law of the Member States applicable to the data controller.

The purpose of the processing must be determined in that legal basis or, in relation to the processing referred to in paragraph 1, point e), must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller. This legal basis may

contain specific provisions to adapt the application of the rules of this Regulation, including, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those relating to other."

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7/16

specific treatment situations pursuant to Chapter IX. The law of the Union or of the Member States shall pursue a public interest objective and shall be proportional to the legitimate aim pursued.

4. When the processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union or Member State law that constitutes a necessary and proportional measure in a democratic society to safeguard the objectives indicated in Article 23, paragraph 1, the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

- a) any relationship between the purposes for which the personal data were collected and the purposes of the intended further processing;
- b) the context in which the personal data were collected, in particular regarding the relationship between the data subjects and the data controller;
- c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data relating to criminal convictions and offenses, in accordance with Article 10;
- d) the possible consequences for the data subjects of the intended further processing;
- e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

In summary, for processing to be lawful, it must be based on one of the legal bases provided for in Article 6 of the GDPR. In this regard, Recital 40 states:

"(40) For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis established by law, whether in this Regulation or under another Union or Member State law to which this Regulation refers, including the necessity of complying with a legal obligation applicable to the data controller or the necessity of performing a contract to which the data subject is a party or for taking steps at the request of the data subject prior to entering into a contract."

Regarding consent, Article 4.11 of the GDPR defines the consent of the data subject as "any freely given, specific, informed and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her."

Furthermore, it is worth mentioning what is provided in Article 5.1 b) of the GDPR, which enshrines as one of the principles of all processing the "purpose limitation" principle, whereby data must be:

"collected for specified, explicit and legitimate purposes, and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation')."

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8/16

In accordance with this article, the purposes must be clearly expressed and identified so that the data

subject knows what the purposes of the processing of their data are, purposes that must comply with the legal framework.

Regarding the interrelation between Article 6(1)(a) and Article 5(1)(b), the European Data Protection Board (EDPB) has stated in Guidelines 5/2020 on consent under Regulation (EU) 2016/679 that one of the basic elements of consent must be that it is specific in relation to the purpose or purposes for which it is collected:

“55. Article 6(1)(a) confirms that the data subject's consent for the processing of their data must be given ‘for one or more specific purposes’ and that a data subject can choose with respect to each of those purposes. The requirement that consent must be ‘specific’ aims to ensure a level of control and transparency for the data subject. This requirement has not been modified by the GDPR and remains closely linked to the requirement for ‘informed’ consent. At the same time, it must be interpreted in line with the requirement of ‘dissociation’ to obtain ‘freely’ given consent. In summary, to comply with the character of ‘specific’, the data controller must apply:

- i. the specification of the purpose as a safeguard against the diversion of use,
- ii. the dissociation in the requests for consent, and
- iii. a clear separation between the information related to obtaining consent for data processing activities and the information related to other matters.

56. (...) In accordance with Article 5(1)(b) of the GDPR, obtaining valid consent is always preceded by the determination of a specific, explicit, and legitimate purpose for the intended processing activity. The necessity of specific consent in combination with the notion of purpose limitation as stated in Article 5(1)(b) serves as a safeguard against the gradual expansion or blurring of the purposes for which data processing is carried out once a data subject has given their authorization for the initial collection of data. This phenomenon, also known as diversion of use, poses a risk to data subjects as it may lead to unforeseen use of personal data by the data controller or third parties and to the loss of control by the data subject.

57. If the data controller relies on Article 6(1)(a), data subjects must always give their consent for a specific purpose for the processing of the data. In line with the concept of purpose limitation, with Article 5(1)(b), and with Recital 32, consent may cover different operations, provided that such operations have the same purpose. It goes without saying that specific consent can only be obtained when data subjects are expressly informed about the intended purposes for the use of the data concerning them.

58. Without prejudice to the provisions on the compatibility of purposes, consent must be specific for each

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9/16

Finally, the interested parties will give their consent understanding that they have control over their data and that it will only be processed for those specific purposes. If a data controller processes data based on consent and, in addition, wishes to process that data for another purpose, they must obtain consent for that other purpose, unless there is another legal basis that better reflects the situation.

In this case, CSIS took a photograph of the claimant for the preparation of their professional ID, therefore, CSIS ultimately collected the image of the claimant. For this purpose, as indicated by the claimant, CSIS obtained their express consent for the processing of their image.

However, subsequently, that photograph was used for the creation of a mural along with the photographs of the other workers at the center, a mural displayed in the workplace.

However, there is no record of the claimant's consent for the display of the photograph in the workplace.

It is also not recorded that the processing was based on any legal basis other than consent, as it has not been demonstrated that this was carried out as necessary for the execution of a lawful contract, for compliance with a legal obligation, or for the performance of a task carried out in the public interest. There is also no evidence of a vital interest, due to the restrictive nature of this, nor is there any

legitimate interest of the controller that, in any case, would have required weighing this against the rights and freedoms of those affected.

Therefore, based on the above, in accordance with the evidence available at this moment in the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to CSIS for violation of Article 6 of the GDPR transcribed above.

V

Classification of the infringement of Article 6 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

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10/16

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679."

VI

Rights of individuals regarding the protection of personal data

On the other hand, the complaint mentions the exercise of the right to erasure by the claimant against the respondent regarding the display of the photograph with their image in the mural located in the workplace.

In this regard, it is worth noting that the rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the interested party, and to express their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

VII

Unfulfilled obligation. Right to erasure ("the right to be forgotten")

Article 17 of the GDPR provides as follows:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

Like the other rights of the data subject, the right to erasure is a personal right. The aforementioned rules do not allow the request to be disregarded as if it had not been made, leaving it without the response that the controllers must necessarily issue, even in the event that there are no data of the data subject in the files of the entity or even in those cases where the requirements set forth are not met, in which case the controller is also obliged to request the rectification of the observed deficiencies or, if applicable, to deny the request with reasons indicating the causes for which the right in question cannot be considered.

In this case, there is a request for the right to erasure dated August 4, 2023, with no response recorded from the complainant, so it has not been demonstrated that the request for the right to erasure by the complainant has been addressed or denied in a reasoned manner as required by current regulations.

In light of the above, in accordance with the evidence available at this moment in the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to CSIS, for violation of Article 17 of the GDPR transcribed above.

VIII

Classification of the infringement of Article 17 of the GDPR and qualification for the purposes of

limitation

Article 83(5) of the GDPR classifies as an administrative infringement the violation of the following article, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to EUR 20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"b) the rights of data subjects under Articles 12 to 22;

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the sole purpose of the limitation period, Article 72(1) of the LOPDGDD establishes the following:

"Based on what is established in Article 83(5) of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein, and in particular the following:

k) The hindrance or obstruction or repeated non-attention to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679."

IX

Declaration of infringements

Article 83 "General conditions for the imposition of administrative fines" of the GDPR, in its paragraph 7, establishes:

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13/16

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines can be imposed on authorities and public bodies established in that Member State."

Article 77 "Applicable regime for certain categories of data controllers or processors" of the LOPDGDD provides as follows:

"1. The regime established in this article shall apply to the processing for which the following are responsible or act as processors:

a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.

b) The judicial bodies.

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

d) The public bodies and entities of public law linked to or dependent on the Public Administrations.

e) The independent administrative authorities.

f) The Bank of Spain.

g) The public law corporations when the purposes of the processing relate to the exercise of public law powers.

h) The public sector foundations.

i) The Public Universities.

j) The consortiums.

k) The parliamentary groups of the General Courts and the autonomous Legislative Assemblies, as well as the political groups of the Local Corporations.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures to be adopted to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically

depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

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14/16

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that is applicable.

Likewise, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible official and shall order the publication in the Official State Gazette or the corresponding autonomous gazette.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions relating to the entities listed in paragraph 1 of this article, with express indication of the identity of the controller or processor that has committed the infringement. When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions shall be governed by its specific regulations."

This provision establishes that the procedures arising from infringements in the area of personal data protection committed by the categories of controllers or processors listed in paragraph 1 shall be resolved, in any case, by declaring the infringement.

In this case, insofar as the CSIS is a consortium in accordance with the provisions of Article 118 of Law 40/2015, of October 1, 2015, the provisions of Article 77 of the LOPDGDD apply, in accordance with Article 77.1 j). Therefore, the declaration of each of the infringements is appropriate.

X

Corrective Measures

Once the infringements have been confirmed, the aforementioned Article 77 of the LOPDGDD provides that the resolution issued may establish the measures that the infringing entity must adopt to cease the infringing conduct, correct the effects of the infringement that has been committed, and carry out the necessary adjustments, in this case, to the requirements set forth in Articles 6 and 17 of the GDPR, and must also provide the AEPD with the evidence of compliance with the requirements.

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15/16

Thus, the responsible entity is required to adjust its actions to the regulations on personal data protection, as expressed in the previous Legal Grounds.

In this act, the presumed infringement committed and the facts that have led to the violation of the data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments to implement them correspond to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, CSIS is required to adopt the following measures within 1 month from the date of enforceability of the resolution concluding this procedure:

- Certify the removal of the image of the claimant from the mural where it is displayed, unless it certifies that it has one of the legal bases provided for in Article 6 of the GDPR for this processing.
- Certify the sending to the claimant of a certification addressing the requested right of erasure or provide a reasoned denial indicating the reasons why the request cannot be granted in accordance with the provisions of this resolution.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the present resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which could lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the CONSORCIO SERVICIO CONTRA INCENDIOS Y DE SALVAMENTO PROVINCIA DE CIUDAD REAL, with NIF P1300035A, has infringed the provisions of Articles 6 and 17 of the GDPR, infringements classified respectively in Articles 83.5.a) and 83.5.b) of the GDPR.

SECOND: TO ORDER the CONSORCIO SERVICIO CONTRA INCENDIOS Y DE SALVAMENTO PROVINCIA DE CIUDAD REAL, with NIF P1300035A, that pursuant to Article 58.2.d) of the GDPR, within 1 month from the date this resolution becomes final and enforceable, to certify compliance with:

- the removal of the image of the claimant from the mural where it is displayed, unless it certifies that it has one of the legal bases provided for in Article 6 of the GDPR for this processing.
- the sending to the claimant of a certification addressing the requested right of erasure or provide a reasoned denial indicating the reasons why the request cannot be granted in accordance with the provisions of this resolution.

THIRD: TO NOTIFY this resolution to the CONSORCIO SERVICIO CONTRA INCENDIOS Y DE SALVAMENTO PROVINCIA DE CIUDAD REAL.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sede.aepd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation certifying the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

938-100325

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